

Court No. - 36

Case :- WRIT - C No. - 19217 of 2011

Petitioner :- Ugrasen Mishra

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Gopal Misra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent no. 1, the case is directed to be put up as fresh on 21.04.2011 so as to enable him to obtain instructions in the matter.

In the meantime, learned counsel for the petitioner may also file Supplementary Affidavit annexing thereto copies of the electricity bills, if any, issued to the petitioner and also the documentary evidence, if any, in regard to the averments made in paragraph nos. 5 and 6 of the Writ Petition.

Order Date :- 4.4.2011

Sunil Kr Tiwari

Court No. - 36

Case :- WRIT - C No. - 19217 of 2011

Petitioner :- Ugrasen Mishra

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Gopal Misra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Supplementary Affidavit has been filed today on behalf of the petitioner. Let the same be taken on record.

Shri Subhash Gosain holding brief for Shri Rajesh Tripathi, learned counsel for the respondent No.1 prays for further time to obtain instruction, as mentioned in the order dated 4th April, 2011.

Let this be done by the next date fixed in the matter.

Put up as fresh on 3rd May, 2011.

Order Date :- 21.4.2011

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Court No. - 37

Case :- WRIT - C No. - 19217 of 2011

Petitioner :- Ugrasen Mishra

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Gopal Misra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Bharati Sapru,J.

As prayed put up as a fresh case on 9th May, 2011.

Order Date :- 3.5.2011

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Court No. - 36

Case :- WRIT - C No. - 19217 of 2011

Petitioner :- Ugrasen Mishra

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Gopal Misra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Shri Rajesh Tripathi, learned counsel for the respondent no.1, the case is directed to be put-up as fresh on 26th May, 2011.

Order Date :- 13.5.2011

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Court No. - 36

Case :- WRIT - C No. - 19217 of 2011

Petitioner :- Ugrasen Mishra

Respondent :- Executive Engineer And Others

Petitioner Counsel :- Gopal Misra

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

As per the averments made in the Writ Petition, the petitioner took 25KW electricity connection for running his Crusher Plant. Despite requisite deposit having been made by the petitioner, new transformer was not installed in place of old transformer. Consequently, the Crusher Machine could not be run sufficiently using electricity connection given to the petitioner. The petitioner continued to use generator as he had been using earlier for running the Crusher Plant. The electricity connection of petitioner was disconnected on 18.03.2007 but no Certificate was given in this regard. The petitioner received a Bill dated 26.04.2007 (copy whereof has been filed as part of Annexure SA-1 to the Supplementary Affidavit) for an amount of Rs.1,69,104/-. Thereafter, the petitioner received another Bill dated 19.2.2010 (copy whereof has been filed as part of Annexure SA-1 to the Supplementary Affidavit) for an amount of Rs.6,21,476/-.

In the meantime, the recovery proceedings have been initiated against the petitioner for recovering the amount of electricity dues stated to be outstanding against the petitioner.

From the averments made in the Writ Petition and the Supplementary Affidavit filed on behalf of the petitioner, it is evident that the petitioner is disputing the correctness of the Bill raised against the petitioner, particularly the aforesaid Bill dated 19.2.2010 for an amount Rs.6,21,476/-.

We have heard Sri Gopal Mishra, learned counsel for the petitioner, the learned Standing Counsel appearing for the respondent nos. 2 and 3 and Sri Rajesh Tripathi, learned counsel for the respondent no.1.

Clause 6.5(b) of the U.P. Electricity Supply Code 2005 provides that if consumer disputes accuracy of any bill, he may file complaint with the competent authority who will take decision on such complaint. The Court is informed that the competent authority contemplated under Clause 6.5 (b) is Executive Engineer concerned.

As noted above, the main grievance of petitioner in the present Writ Petition is regarding the accuracy/correctness of the Bill raised against him.

In view of the above provision contained in the U.P. Electricity Supply Code 2005, we are of the opinion that the interest of justice will be sub-served in case the Writ Petition is disposed of with the following directions:

1. Within four weeks from today, the petitioner will submit his Objections against the aforesaid Bill dated 19.02.2010 alongwith deposit of Rs.3 lacs before the respondent no.1.
2. On receipt of the aforesaid documents along with deposit, the respondent no.1 (Executive Engineer concerned) will consider the Objections submitted by the petitioner and decide the same by passing a reasoned and speaking order in accordance with law after giving opportunity of hearing to the petitioner ,expeditiously , preferably within a period of two months of the receipt of the said documents alongwith deposit.
3. For a period of four months from today or till the disposal of the Objections by the respondent no.1 (Executive Engineer concerned), whichever is earlier, the recovery proceedings against the petitioner in regard to the aforesaid Bill dated 19.02.2010 (Annexure SA-1 to the Supplementary Affidavit) will remain stayed.
4. The recovery against the petitioner will abide by the decision of the respondent no.1 (Executive Engineer) on the Objections filed by the petitioner.
5. In case the petitioner fails to submit the Objections or make the deposit , as mentioned in Condition No.1 above, this order will stand automatically vacated and it will be open to the respondents to proceed against the petitioner in accordance with law.

With the aforesaid directions, the writ petition stands disposed of finally .

It is made clear that we have not adjudicated the claim of petitioner on merits.

Copy of this order will be provided to the learned counsel for the parties on payment of usual charges today.

Order Date :- 26.5.2011

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